

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,

Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.

Respondents and Third-Party Complainants,

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,

Third-Party Respondent.

**THIRD-PARTY RESPONDENT'S MOTION FOR ENLARGEMENT OF TIME TO FILE
AN ANSWER OR TO OTHERWISE MOVE**

Pursuant to Federal Maritime Commission Rule of Practice and Procedure 69, 46 C.F.R. § 502.69, Third-Party Respondent Samsung Electronics Co., Ltd. s/h/a Samsung Electronics Company, Ltd. ("Third-Party Respondent" or "SEC") hereby moves that the deadline for the filing of an answer or to otherwise move be extended from the current date of January 13, 2025, to January 29, 2025.

Although the Third-Party Complaint (Document No. 20) and the Notice of Filing of Third-Party Complaint (Document No. 21) report service on December 17, 2024, Third-Party

Respondent (who is located in the Republic of Korea) has yet to receive service of the Third-Party Complaint. While the sufficiency and adequacy of the service of process is at issue, Third-Party Respondent believes an extension of time is necessary to adequately respond to Orient Overseas Container Line Limited and OOCL (Europe) Ltd.'s (hereafter collectively referred to as "OOCL") Third Party Complaint and the undersigned counsel requires time to confer with SEC regarding the present matter.

Further, pursuant to 46 C.F.R. § 502.102(a), while the present Motion for Enlargement of Time is being filed less than seven days before the scheduled filing date, undersigned counsel was retained on January 8, 2025, five days prior to January 13, 2025. Thus, reasonable grounds exist for the failure to meet this requirement.

In accordance with Rule 71, 46 C.F.R. § 502.71, the undersigned has conferred with counsel for OOCL and Samsung Electronics America, Inc. ("SEA") regarding this request and has been authorized to represent that counsel for SEA and OOCL agree to the requested extension. Accordingly, good cause exists to grant the requested extension, and SEC submits that this will not cause any undue delay or disadvantage to any party.

SEC therefore respectfully requests that an Order be issued permitting Third-Party Respondent until January 29, 2025, to file its first responsive pleading in this proceeding.

Dated: January 9, 2025

Respectfully submitted,

HOHENSTEIN & PARKINSON, LLP

By: /s/ James H. Hohenstein

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Counsel to Samsung Electronics

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

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2. Hon. Alex M. Chintella – *Administrative Law Judge*
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Dated: January 9, 2025

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